

For office use only

Application Reference:

Name:

Mr Trevor Burley

Telephone:

Email:

Lagan Reference:

101008128416

Application /Portal Ref:

PA26/03485

Development Description:

Demolition of approved barn conversion (PA24/07287) and construction of 2 replacement dwellings and associated works

Number of:

Residential dwellings:

2 (At £352.00 each = £704.00)

Tourist accommodation:

0

Student accommodation:

0

Specialist elderly accommodation:

0

Administration Charge:

£57.00

BY

Mr Trevor Burley of THE PALM HOUSE TROLVER HILL FEOCK TR3 6RR

TO

Cornwall Council of New County Hall Treyew Road Truro TR1 3AY ("the Council")

Background

- 1. I am the Owner of the land situated at LAND NE OF GWARNICK MILL FARM BARN E ST ALLEN ST ALLEN TR5 9QU (being the land shown edged red on the plan previously submitted).
- 2. The Council is the local planning authority for the area within which the land is situated.
- 3. I have applied to the Council for planning permission to develop the land by Demolition of approved barn conversion (PA24/07287) and construction of 2 replacement dwellings and associated works ('The Development') and have submitted this undertaking in support of the Application Reference Number displayed on submitting this form.
- 4. This Undertaking is given pursuant to Section 111 of the Local Government Act 1972.

Definitions

In this Undertaking: "Dwelling"	Means a building or part of a building, caravan, mobile home or park home designed for residential occupation by a single household and "Dwellings" shall be construed accordingly.
"Tourist accommodation"	Means hotels, guest houses, B&Bs lodges, static caravans and tourism pitches and "tourism accommodation" shall be construed accordingly.
"Student or HMO (Houses of Multiple Occupancy) accommodation"	Means a building or part of a building used for student or HMO accommodation or bedrooms. For example if there is a campus or HMO type development SAC is charged per bedroom, anything else is charged at the residential dwelling rate and "student or HMO accommodation" shall be construed accordingly.
"Active elderly accommodation"	Means specially designed self-contained accommodation for the more active elderly, which may include an element of scheme supervisor support and/or additional communal facilities and "active elderly accommodation" shall be construed accordingly.
"Fal And Helford Special Area of Conservation Habitat Mitigation Contribution"	Means the sum of £352.00 per dwelling and/or £147.00 per bedroom for student/serviced accommodation to be paid by the Owner to avoid or mitigate against any adverse effect of the development on the Fal And Helford Special Area of Conservation Habitat Mitigation Contribution in accordance with the Habitats Directive, the Cornwall European Sites Supplementary Planning Document and Policy 22 of the Cornwall Local Plan Strategic Policies 2010 - 2030.
"S111 Administration Charge"	Means an additional charge of £57.00 to cover the costs of administration and monitoring of the agreement.

The Owner on behalf of himself is making the attached payment of £761.00 to the Council on the signing of this undertaking to address the requirements of the policies stated above and to confirm that the Fal And Helford Special Area of Conservation Habitat Mitigation Contribution and Administration Charge have been paid to the Council for the defined purposes to be held by the Council and used solely for those purposes.

I understand I can request in writing a refund of the Fal And Helford Special Area of Conservation Habitat Mitigation Contribution in any of the following circumstances:

- i. Planning permission for The Development was refused, and six months from the date of refusal has lapsed without a planning appeal having been made. In this scenario, the refund must be claimed within a total of nine months from the planning refusal date.
- ii. A Planning Appeal submitted in respect of The Development has been dismissed. In this scenario, the refund must be claimed within six months of the Appeal decision.
- iii. Planning permission for The Development was approved but has not commenced and the planning permission has expired or is no longer capable of being implemented*. In this scenario, the refund must be claimed within six months of the relevant date.

- iv. The planning application was withdrawn. In this scenario, the refund must be claimed within six months of the withdrawal date.

Written requests for refunds must be made to: planning.obligations@cornwall.gov.uk

1. The total amount refunded will be the sum of the original European Sites Mitigation Contribution payment. The Administration Charge will not be refunded.
2. No interest will accrue to be refunded.
3. If a planning refusal is appealed and allowed by the Planning Inspectorate, no refund will be made.

*If the planning permission is varied or amended by a section 73 application, then the contribution may be used to cover the European Site Mitigation Contribution due for that application, in addition to the contribution potentially being subject to increase.

By confirming this undertaking the Owner confirms that where the land is owned by more than one person this undertaking has been given jointly and severally by all such persons constituting the Owner and that the above undertakings shall be enforceable by the Council against the Owner.

For the purposes of the Contracts (Rights of Third Parties) Act 1999 it is agreed that nothing in this Undertaking shall confer on any third party (other than the Council) any right to enforce or any benefit of any term of this Undertaking.

Ticked to confirm:	Yes
Full name:	Mr T Burley
Date:	10/06/2026

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Application Reference:	
Application Determined:	/...../..... (Approved / Refused)
Six month threshold:	/...../.....
Appeal Submitted:	Yes / No (Allowed / Dismissed)

<https://secure.cornwall.gov.uk/selfservice/PaymentPortal?id=101008128416&mode=VOF&redirect=y>